

24SMCV03271 24SMCV03271

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-22

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Case Number: 24SMCV03271 Hearing Date: September 22, 2026 Dept: M

CASE NAME: Alvarado, v. Berk

CASE NO.: 24SMCV03271

MOTION: Motion to Dismiss

HEARING DATE: 9/22/2026

Legal

Standard

Code of Civil Procedure ("CCP")

section 367 provides that every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute. CCP section 377.31 states: "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest."

ANALYSIS

Defendant/Cross-Complainant Laura

Berk moves for an order dismissing this action against her with prejudice. Cross-Defendant James Wolf joins. Plaintiff has not filed an opposition.

Berk's request for judicial notice
is GRANTED.

Defendant argues that dismissal is appropriate because Plaintiff passed away on September 22, 2025, and his counsel has failed to file for a substitution of a personal representative to prosecute this case pursuant to CCP sections 377.31-377.32. Defendant reasons that no party has standing to prosecute the action and it should be dismissed.

Defendants do not show any grounds for dismissal under the circumstances. For instance, Defendants do not show grounds for discretionary or mandatory dismissal for failure to prosecute. (CCP §§ 583.310; 583.240.) The text of CCP sections 367, 377.31 and 377.32 do not provide any mechanism for a party to seek dismissal. Defendants fail to show that the instant claims abate or do not survive Plaintiff's death. (See *Adams v. Superior Court* (2011) 196 Cal.App.4th 71, 79 [causes of action that abate due to the death of a plaintiff include, e.g., a marital dissolution proceeding; otherwise, the personal representative or successor in interest has an absolute right to be substituted for the decedent].) Caselaw suggests that dismissal would be inappropriate even with a three-year delay in appointing an administrator. (See *Pham v. Wagner Litho Machinery Co.* (1985) 172 Cal.App.3d 966, 969 [reversing dismissal on the five-year statute, finding that the three-year period between death of plaintiff and appointment of administrator tolled the five-year statute].)

Accordingly, the motion is DENIED.